

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: September 30, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

**ORDER GRANTING JOINT MOTION FOR ENTRY OF PROTECTIVE ORDER AND RULE 502(D)
ORDER**

On September 29, 2025, the parties filed a Joint Motion for Entry of Protective Order (“Joint Motion”), along with a Protocol Regarding Electronically Stored Information (“ESI Protocol”) and a Proposed Rule 502(d) Order (“Proposed 502 Order”). I understand that the ESI Protocol does not require an order. I discuss the Joint Motion and Proposed 502 Order below.

A. Joint Motion

The Joint Motion states that “a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” (Joint Motion, at 1).

The Initial Order issued in this proceeding states that: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” (Initial Order, at 5).

The proposed protective order is reasonable. The parties, however, should note that confidential materials filed in the proceeding are addressed in the Initial Order:

21. Use in the proceeding --If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

(Initial Order, at 5). Similarly, entire transcripts of depositions may not be designated confidential when used in this proceeding, despite any conflicting terms in this protective order. (*Id.*). Moreover, to the extent that the proposed protective order refers to filing dates or otherwise conflict with the Commission's Rules, the Commission's Rules shall apply.

The parties should note that after the initial decision is issued, the undersigned may not have authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties.

The parties have established good cause to enter the proposed protective order. Accordingly, the Joint Motion is **GRANTED**, and it is hereby **ORDERED** that the protective order be entered as modified by the above as an order in this proceeding.

B. Proposed 502 Order

Rule 502(d) of the Federal Rules of Evidence provides that: "A federal court may order that the privilege or protection is not waived by disclosure connected with the litigation pending before the court — in which event the disclosure is also not a waiver in any other federal or state proceeding."

The parties ask for an order in this matter consistent with the provisions of Rule 502(d). Such orders have been previously granted by the Commission. (*See Samsung Electronics Am., Inc. v., HMM, Co., Ltd. F/K/A Hyundai Merchant Marine Co., Ltd.*, Dkt. No. 24-23, 2025 WL 2053492 (ALJ Jul. 18, 2025)).

Accordingly, the Proposed 502 Order is **GRANTED**, and it is hereby **ORDERED** that the Proposed 502 Order shall be entered as an order in this proceeding.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
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Richard Ambrow
Administrative Law Judge